

15. 9:00 AM CASE NUMBER: C25-01327

CASE NAME: MARIA ESTANTE VS. NOCD FLORIDA BEHAVIORAL HEALTH, P.A.

***MOTION/PETITION TO COMPEL ARBITRATION**

FILED BY: CONLEY, DR. SARA

TENTATIVE RULING:

The motion to compel arbitration, filed by defendant, Dr. Sara Conley, appears to invoke an agreement signed with corporate defendant NOCD Florida Behavioral Health, P.A. (See Declaration of Matthew Thorne, Ex. A.)

Accordingly, a motion to compel arbitration in reliance on the agreement is best considered in conjunction with the anticipated motion by that defendant. Because NOCD Florida Behavioral Health, P.A. has made it clear that it intends to file such motion once its default is set aside (by attaching it to the Motion to Set Aside Default), the Court **re-sets the hearing date on this motion to March 26, 2026, 9:00 a.m.**, in order to permit both motions to be heard on the same date.

To avoid confusion and streamline the clerk's calendaring of the motions on the same date (March 26, 2026), corporate defendants (NOCD Florida Behavioral Health, P.A. and NOCD, Inc.) shall make reference to this order when filing their motion to compel arbitration.

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.

16. 9:00 AM CASE NUMBER: C25-01943

CASE NAME: ROGER BAILEY VS. SYNGENTA AG

***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL**

FILED BY:

TENTATIVE RULING:

The **motion is granted**. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). **Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court.**

17. 9:00 AM CASE NUMBER: C25-02669

CASE NAME: CORINNE REES VS. SAMIR ROHAYEM

***HEARING ON MOTION IN RE: MANDATORY TRIAL SETTING PREFERENCE PURSUANT TO CAL. CIV. PROC. CODE 36**

FILED BY: ROHAYEM, SAMIR

TENTATIVE RULING:

The moving papers establish adequate grounds for mandatory preference and there is no opposition. Jury trial is set for April 5, 2026, 10:00 a.m., with an Issue conference March 20, 2026, 9:00 a.m. As of March 1, 2026, the matter is assigned for all purposes to Department 10, the Honorable Julia Campins.

18. 9:00 AM CASE NUMBER: MSC20-01863

CASE NAME: JACKSON VS ANOVA CENTER

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

Counsel to appear (by zoom is sufficient). For good cause, appearance of the claimant and the guardian ad litem is waived.

19. 9:00 AM CASE NUMBER: MSC20-01863

CASE NAME: JACKSON VS ANOVA CENTER

***HEARING ON MOTION IN RE: (REDACTED) SEAL AND POINTS AND AUTHORITES IN SUPPORT OF MOTION TO SEAL**

FILED BY:

TENTATIVE RULING:

Parties to appear (by zoom is sufficient).

20. 9:00 AM CASE NUMBER: MSC20-01963

CASE NAME: NORA CHAVEZ VS GAWFCO ENTERPRISES

***HEARING ON MOTION IN RE: ORDER DIRECTING COMPLIANCE WITH BELAIRE WEST NOTICE PROCESS**

FILED BY: CHAVEZ, NORA

TENTATIVE RULING:

Plaintiff moves for an order compelling defendant to comply with the Belaire-West notice process. Defendant opposes on the ground that such disclosure is precluded by the California Consumer Privacy Act of 2018 and the California Privacy Rights Act of 2020. Defendant further contends that the “opt-out” process should be changed to an “opt-in” process.

The CCPA does not preclude use of the *Belaire-West* notice process, because compliance with court-ordered discovery, at a minimum, constitutes “defending legal claims.” (Civil Code § 1798.145(a)(1)(E).)

Moreover, in *Williams v. Superior Court* (2017) 3 Cal.5th 531, 553, the court noted that while home contact information “is generally considered private, the second *Hill* requirement that a reasonable expectation of private in the particular circumstances is not met.” It added that “[w]e doubt Williams’s fellow employees would expect that information to be withheld from a plaintiff seeking to prove labor law violations committed against them and to recover civil penalties on their behalf.” (*Id.*)

As to converting the “opt-out” process to an “opt-in” process, in *Williams* the Supreme Court specifically approved of the “opt-out” process. It stated that “the *Belaire-West* trial court was correct to order disclosure, subject to employees being given notice of the action, assurance that they were under no obligation to talk to plaintiffs’ counsel, and an opportunity to opt out of disclosure by returning an enclosed postcard.” (*Id.*)

Plaintiff’s motion is granted.

As of March 1, 2026, this case is assigned for all purposes to Department 16, the Honorable Benjamin Reyes.